IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER], [PLACE]

[CASE TYPE] No. ____ of 20__

MEMO OF PARTIES

[NAME OF PLAINTIFF / PETITIONER / COMPLAINANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Plaintiff / Petitioner / Complainant

Versus

[NAME OF DEFENDANT / RESPONDENT / ACCUSED], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Defendant / Respondent / Accused

Next date of hearing: [DATE]

APPLICATION UNDER ORDER IX RULE 9 READ WITH SECTION 151 CPC FOR RESTORATION OF THE SUIT DISMISSED IN DEFAULT ON [DATE]

Respectfully showeth:

1. That the above-noted suit was fixed for [STAGE] on [DATE] and was dismissed in default of appearance of the plaintiff [under Order IX Rule 8 CPC].
2. That the plaintiff and counsel could not appear on that date because [SUFFICIENT CAUSE — e.g. illness with medical record, wrong noting of the date, counsel's genuine reason].
3. That the non-appearance was neither intentional nor deliberate, and the plaintiff has always been diligent in pursuing the suit.
4. That this application is filed within thirty days of the order of dismissal [Article 122 of the Limitation Act, 1963].
5. That dismissal occurred on [date] under [exact rule and terms of order], when [both parties absent / defendant present and plaintiff absent / other situation]. The applicable restoration provision is selected accordingly, rather than assuming every dismissal falls under Order IX Rule 9.
6. That on the hearing date [ ] the applicant and counsel were unable to appear because [separate reasons and times], supported by [contemporary documents].

7. That the dismissal was learned of on [date], and steps thereafter were [dated chronology]. Limitation under the applicable article and any necessary condonation are calculated as [particulars].
8. That previous defaults, costs, compliance and the stage to be restored are [details]. The applicant offers [proportionate terms] and is ready to proceed on [task].

PRAYER

It is, therefore, respectfully prayed that the order dated [DATE] dismissing the suit in default may kindly be set aside, and the suit restored to its original number and stage.

Place: [PLACE] Date: [DATE]

APPLICANT / PLAINTIFF

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Plaintiff

IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER], [PLACE]

[CASE TYPE] No. ____ of 20__

[NAME OF PLAINTIFF / PETITIONER / COMPLAINANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

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Versus

[NAME OF DEFENDANT / RESPONDENT / ACCUSED], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Defendant / Respondent / Accused

AFFIDAVIT

Affidavit of [NAME OF DEPONENT], [S/o / D/o / W/o] [NAME], aged about [__] years, resident of [FULL ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER].

I, the above-named deponent, do hereby solemnly affirm and declare as under:

1. That I am competent to swear this affidavit. The accompanying [suit / petition / application] was drafted by counsel on my instructions, read over and explained to me in [LANGUAGE], and is adopted as part of this affidavit. Its facts are true to my knowledge or identified records; legal submissions rest on advice believed true.
2. That [no same or similar proceeding on this cause has been filed / all prior and pending proceedings, outcomes and orders are disclosed here: ___]. Nothing material is concealed.

DEPONENT

VERIFICATION

Verified at [PLACE] on [DATE] that paragraphs 1 and 2 above are true and correct to my knowledge and identified records, with legal submissions based on advice believed true. Nothing material has been concealed.

DEPONENT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Plaintiff

PREPARATION AND JUDGMENT APPLICATION

MODEL FOR GENERAL REFERENCE ONLY. NOT LEGAL ADVICE. These preparation notes are not part of the document to be signed or filed.

Model format for general reference only. Not legal advice. Adapt to the facts and the court's current rules. Source: masterlegalwork.com

Layout revised 17 October 2026 in the MLW house style: Legal paper, Arial 13, justified text and separate preparation notes. This is a model, not a prescribed court form. Check the current registry and e-filing requirements; mandatory court directions prevail. Use only identity particulars lawfully required by the forum and apply any required masking.

Updated 11 October 2026. Complete every material fact, retain only supported alternatives, and renumber before filing. These notes support professional adaptation; they do not supply missing evidence or guarantee relief.

Filing and relief checks. Use Rule 4 or Rule 9 as warranted by the actual dismissal order; examine Rule 9’s fresh-suit bar. Do not replace restoration by an unjustified new suit. Notice and separate delay relief must be addressed where required.

Before relying on any authority, compare the material facts, procedural stage, statutory version and precise relief; check subsequent treatment and applicable local practice. Keep the authority note separate from the signed pleading. For criminal procedure, determine Section 531 BNSS savings rather than select the code solely from the alleged offence date.

Note: To be sworn before an Oath Commissioner / Notary Public and stamped as required by the applicable rules.